

GOVERNMENT HACK · TROOPTOTEACHER TECHNOLOGIES

Foundations of Constitutional Government

United States Government & Civics (GC) · Unit 1 · GC.01–GC.09

“How and why did the Founders build a limited constitutional republic?”

Grades 9–12 · Suggested 15–17 days · Supplemental under TCA § 49-6-2202(a)(3)

Essential Question: How and why did the Founders build a limited constitutional republic?

GC.01

Enlightenment Roots of American Government

GC.02

The Declaration of Independence

GC.03

The Articles of Confederation

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The Constitutional Convention & Ratification

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The Preamble: Purposes of Government

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Principles of Limited Government

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Structure of the Constitution & How to Amend It

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The Bill of Rights

GC.09

Republic and Democracy

Enlightenment Roots of American Government

Learning target: I can examine the influences of leading European thinkers (e.g., John Locke, Charles-Louis Montesquieu, Thomas Hobbes) and other roots of American government (e.g., Greek democracy, Roman Republic, Magna Carta).

HOOK

You already have rights no ruler gave you and none can take away — that's the idea that started a revolution. Where did it come from?

PRIMARY SOURCE

“Men being, as has been said, by nature all free, equal, and independent, no one can be put out of this estate and subjected to the political power of another without his own consent.”

John Locke, *Second Treatise of Government* (1689) • Avalon Project, Yale Law School

KEY VOCABULARY

Natural Rights /NATCH-rul RYTS/

derechos naturales

God-given rights to life, liberty, and property that government does not grant and cannot rightfully take away — central to John Locke's political thought.

CHECK FOR UNDERSTANDING • DOK 2

According to John Locke, where does a government's rightful authority come from?

- A The divine right of kings
- B The strongest military
- C ✓ The consent of the people being governed**
- D Inherited wealth and land

Answer: C. DOK 2: Locke's social-contract theory holds that legitimate government rests on the consent of the governed to protect natural rights — a direct root of the Declaration's 'consent of the governed.'

The Declaration of Independence

Learning target: I can examine the Declaration of Independence and American grievances against British rule.

HOOK

'All men are created equal.' A bold claim in 1776 — and the colonists used it to fire a king. How does the Declaration build its case?

PRIMARY SOURCE

“We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness.”

Continental Congress (drafted by Thomas Jefferson), Declaration of Independence (July 4, 1776) · National Archives

KEY VOCABULARY

Unalienable Rights /un-AY-lee-uh-nuh-bul RYTS/

derechos inalienables

Rights so fundamental they cannot be taken away or given up — in the Declaration, 'Life, Liberty and the pursuit of Happiness.'

CHECK FOR UNDERSTANDING · DOK 3

The Declaration lists the colonists' natural rights and then a long list of grievances against the king. Why did the writers put these two parts together?

- A ✓** To show that when a government repeatedly violates the people's rights, the people may justly alter or abolish it
- B** To make the document longer and more impressive
- C** To ask King George III to apologize
- D** To describe how to run the new state governments

Answer: A. DOK 3: The structure is an argument — universal rights (major premise) + the king's specific violations (evidence) → the conclusion that the colonies may rightfully separate. Grievances turn principle into justification.

The Articles of Confederation

Learning target: I can identify the strengths and weaknesses of the Articles of Confederation.

HOOK
Imagine a national government that can declare war but can't collect a dime to pay for it. That was America under the Articles. What went wrong?

PRIMARY SOURCE

“Each state retains its sovereignty, freedom, and independence, and every power, jurisdiction, and right, which is not by this Confederation expressly delegated to the United States, in Congress assembled.”

Second Continental Congress, Articles of Confederation, Article II (ratified 1781) · Avalon Project, Yale Law School

KEY VOCABULARY

Confederation /kon-fed-uh-RAY-shun/
confederación

A loose union of independent states that keep most of their power, giving only limited authority to a weak central government.

CHECK FOR UNDERSTANDING · DOK 2

Under the Articles of Confederation, which power did the national government LACK that caused serious problems?

- A The power to declare war
- B The power to make treaties
- C The power to run a post office
- D ✓ The power to tax the states and citizens directly**

Answer: D. DOK 2: The Articles denied Congress the power to tax; it could only request money from the states. Without reliable revenue, the national government could not pay debts or respond to crises like Shays's Rebellion.

The Constitutional Convention & Ratification

Learning target: I can discuss the Constitutional Convention of 1787, including the Great Compromise and the ensuing debate over ratification between the Federalists and Anti-Federalists.

HOOK

Two plans, thirteen stubborn states, one hot Philadelphia summer. How did the Framers turn a deadlock into a Constitution?

PRIMARY SOURCE

“The latent causes of faction are thus sown in the nature of man... The regulation of these various and interfering interests forms the principal task of modern legislation.”

James Madison (Publius), *Federalist No. 10* (1787) • *Congress.gov / Library of Congress*

KEY VOCABULARY

Great Compromise /GRAYT KOM-pruh-myz/

Gran Compromiso

The 1787 agreement creating a two-house Congress: a House based on state population and a Senate with equal representation (two per state) — settling the fight between large and small states.

CHECK FOR UNDERSTANDING • DOK 3

The Great Compromise settled which major disagreement at the Constitutional Convention?

- A Whether to have a president or a king
- B ✓** How states should be represented in Congress — by population or equally
- C Whether to keep the Articles of Confederation
- D Whether to allow political parties

Answer: B. DOK 3: Large states favored the Virginia Plan (representation by population); small states favored the New Jersey Plan (equal representation). The Great Compromise combined both — a population-based House and an equal-

The Preamble: Purposes of Government

Learning target: I can describe the purposes and functions of government as outlined in the Preamble of the Constitution.

HOOK

Six goals, one sentence, and it starts with three world-changing words: 'We the People.' What did the Framers promise?

PRIMARY SOURCE

“We the People of the United States, in Order to form a more perfect Union, establish Justice, insure domestic Tranquility, provide for the common defence, promote the general Welfare, and secure the Blessings of Liberty to ourselves and our Posterity, do ordain and establish this Constitution for the United States of America.”

Constitutional Convention, *Preamble to the U.S. Constitution* (1787) · National Archives

KEY VOCABULARY

Preamble /PREE-am-bul/

preámbulo

The introduction to the Constitution that states the document's purposes, beginning 'We the People.'

CHECK FOR UNDERSTANDING · DOK 2

The Preamble begins with the words 'We the People.' Which principle of government does this phrase express?

- A Judicial review
- B Separation of powers
- C ✓ Popular sovereignty — government power comes from the people
- D Federalism

Answer: C. DOK 2: 'We the People' declares that the Constitution's authority flows from the people themselves — the principle of popular sovereignty — not from a king or a single state.

Principles of Limited Government

Learning target: I can describe limited government within the Constitution, including: checks and balances; civilian control of the military; federalism; judicial review; popular sovereignty; rule of law; separation of powers.

HOOK

'If men were angels, no government would be necessary.' Since we're not angels, how did Madison design a government to guard against itself?

PRIMARY SOURCE

“If men were angels, no government would be necessary. If angels were to govern men, neither external nor internal controls on government would be necessary... Ambition must be made to counteract ambition.”

James Madison (Publius), *Federalist No. 51* (1788) • [Congress.gov](#) / [Library of Congress](#)

KEY VOCABULARY

Separation of Powers /sep-uh-RAY-shun/

separación de poderes

Dividing government into three branches — legislative, executive, and judicial — so no one branch holds all power.

CHECK FOR UNDERSTANDING • DOK 3

In Federalist No. 51, Madison writes that 'ambition must be made to counteract ambition.' Which constitutional design does this describe?

- A ✓** Checks and balances that let each branch limit the others
- B** Popular sovereignty
- C** Federalism between nation and states
- D** The amendment process

Answer: A. DOK 3: Madison's point is structural — because people seek power, the Constitution pits the branches against each other so each checks the others' ambition. That is the logic of checks and balances.

Structure of the Constitution & How to Amend It

Learning target: I can describe the structure of the Constitution and the process to amend it.

HOOK
Only 27 changes in more than 230 years. Is the Constitution nearly perfect — or nearly impossible to change? Article V holds the answer.

PRIMARY SOURCE

“The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution, or... shall call a Convention for proposing Amendments, which... shall be valid... when ratified by the Legislatures of three fourths of the several States.”

Constitutional Convention, U.S. Constitution, Article V (1787) · National Archives

KEY VOCABULARY

Amendment /uh-MEND-munt/

enmienda

A formal change or addition to the Constitution; there have been 27, beginning with the Bill of Rights.

CHECK FOR UNDERSTANDING · DOK 2

Why did the Framers make the amendment process in Article V deliberately difficult?

- A To make sure the Constitution could never change
- B To let a single state change it alone
- C To give the president control over amendments
- D ✓** So the Constitution could adapt over time, but only with broad agreement across the country

Answer: D. DOK 2: Requiring supermajorities to propose (2/3 of Congress) and ratify (3/4 of states) means change is possible but requires broad national consensus — balancing stability with flexibility.

The Bill of Rights

Learning target: I can analyze how the Bill of Rights limits the powers of the government and ensures individual rights.

HOOK

Ten amendments, one purpose: to tell the government what it may NOT do to you. Why did Americans insist on adding them?

PRIMARY SOURCE

“Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.”

U.S. Congress (Bill of Rights), First Amendment (ratified 1791) · National Archives

KEY VOCABULARY

Bill of Rights /BIL of RYTS/

Carta de Derechos

The first ten amendments to the Constitution (1791), which protect individual freedoms and limit the power of government

CHECK FOR UNDERSTANDING · DOK 3

The First Amendment begins 'Congress shall make no law...' Why does the Bill of Rights phrase protections as limits on the government rather than as gifts to the people?

- A** To show the government created these rights and can remove them
- B ✓** Because the Framers saw rights as belonging to people already — the Constitution's job is to stop government from violating them
- C** To give Congress more power over speech and religion
- D** Because only Congress has rights

Answer: B. DOK 3: The Bill of Rights reflects natural-rights thinking: rights pre-exist government. Framing them as

Republic and Democracy

Learning target: I can define the concepts of democracy and republic and examine the relationship between the two.

HOOK

Is the United States a democracy or a republic? The answer is 'both, on purpose' — and it changes how your voice reaches government.

PRIMARY SOURCE

“A republic, by which I mean a government in which the scheme of representation takes place... promises the cure for which we are seeking. Let us examine the points in which it varies from pure democracy.”

James Madison (Publius), *Federalist No. 10* (1787) · [Congress.gov](https://www.congress.gov) / [Library of Congress](https://www.libraryofcongress.org)

KEY VOCABULARY

Republic /ree-PUB-lik/

república

A government in which citizens elect representatives to make laws and decisions on their behalf.

CHECK FOR UNDERSTANDING · DOK 2

What is the main difference between a direct democracy and a republic (representative democracy)?

A ✓ In a direct democracy citizens vote on laws themselves; in a republic they elect representatives to make laws

B A republic has no elections

C A republic is ruled by a king

D There is no difference

Answer: A. DOK 2: In a direct democracy the people vote on laws directly; in a republic (representative democracy) the people elect representatives who make laws on their behalf — the model the Framers chose.

Whose Voice Counted? Perspectives on the Founding

Federalists

Argued for a stronger national union and ratification; Madison and Hamilton defended checks and balances and the large republic in the Federalist Papers (GC.04, GC.06).

Anti-Federalists

Feared a distant, too-powerful central government and refused to ratify without a Bill of Rights to protect individual liberty (GC.04, GC.08).

Enslaved & Free Black Americans

The Three-Fifths Compromise counted enslaved people as three-fifths of a person for representation (GC.04), even as the Declaration proclaimed that 'all men are created equal' (GC.02).

Women & the Unenfranchised

Women, most non-property holders, and Native peoples could not vote at ratification; the Article V amendment process (GC.07) later became the path to expand the franchise.

Our Signature Move



Tennessee entered the Union in 1796 as the 16th state. Its own state constitution echoes the federal design studied in this unit — a separation of powers among three branches and a Declaration of Rights modeled on the Bill of Rights (GC.06, GC.08).

Revisit the Essential Question

“How and why did the Founders build a limited constitutional republic?”

Students now have the sources, vocabulary, and reasoning to answer it — in a CER paragraph or the unit DBQ.

GC.01 · GC.02 · GC.03 · GC.04 · GC.05 · GC.06 · GC.07 · GC.08 · GC.09